

LIST OF ISSUES

Matter: ARBITRATION CASE NO. ARB/114/2026

Settled on: 25.02.2026

1. Whether RA Bill No. 7 was certified for Rs. 89,40,000 as pleaded by the Claimant or Rs. 92,40,000 as pleaded by the Respondent?
2. Whether the delay in completion of the third substation is attributable to the Claimant or the Respondent?
3. Whether Clause 22 (delay damages) of the Contract is enforceable or constitutes a penalty under Section 74 of the Indian Contract Act, 1872?
4. Whether the Respondent is entitled to the counterclaim of Rs. 68,00,000 for additional works?
5. Whether the Claimant is entitled to the sum claimed together with interest and costs?
6. Relief.